



United States
Attorney's Office
District of Maryland



Radiopharmaceutical Company Set to Pay \$350,000 to Resolve False Claims Act Allegations

Monday, January 13, 2025

For Immediate Release

U.S. Attorney's Office, District of Maryland

Baltimore, Maryland – PharmaLogic Holdings Corporation, a radiopharmaceutical company headquartered in the State of Florida, has agreed to pay \$350,000 to resolve allegations that it violated the False Claims Act. Nine of the corporation's subsidiaries are accused of violating the False Claims Act by knowingly filing to receive small-entity status to obtain a reduced U.S. Nuclear Regulatory Commission (NRC) annual fee.

Erek L. Barron, U.S. Attorney for the District of Maryland, announced this settlement with Inspector General Robert J. Feitel, NRC.

The NRC, which regulates and licenses civilian use of radioactive materials, charges an annual fee to entities that grant licenses to handle, store, or possess radioactive materials. Entities that qualify as a small entity under 10 C.F.R. § 171.16(c) can obtain a reduced annual fee. The entity obtains the fee reduction by filing an NRC Form 526, Certification of Small Entity Status for the Purposes of Annual Fees Imposed under 10 CFR Part 171.

Beginning around March 31, 2015, thru December 31, 2023, nine entities acquired by PharmaLogic Holdings Corporation filed NRC 526 forms. Through these filings, each entity certified its small-entity status entitling them to a reduced NRC annual fee. Under false pretenses, the NRC certified the entities and reduced their annual fees. However, the entities exceeded the size limits to qualify for reduced annual fees.

"This settlement exemplifies that the United States Attorney's Office will hold accountable companies that claim falsely their small entity status to obtain from the government a benefit to which the companies are not entitled," said Erek L. Barron, United States Attorney for the District of Maryland. "We will never tire in our efforts to pursue those taking undue advantage of government programs."

“This case demonstrates the OIG’s commitment to anti-fraud initiatives and is consistent with our office’s recent efforts to ramp up investigations on this front,” said NRC Inspector General Robert J. Feitel. “I also wish to express my sincere gratitude to the NRC staff, particularly the staff in the Labor Administration & Fee Billing Branch of the Office of the Chief Financial Officer, for their cooperation during the OIG’s investigation.”

U.S. Attorney Barron and Inspector General Feitel commended the NRC-OIG and the Special Agents on the OIG’s Anti-Fraud Team for their work in this investigation. Mr. Barron also thanked Assistant U.S. Attorney Tarra DeShields, who handled the case.

The claims resolved by the settlement are allegations only and there has been no determination of liability.

For more information on the Maryland U.S. Attorney’s Office, its priorities, and resources available to help the community, visit <https://www.justice.gov/usao-md> and <https://www.justice.gov/usao-md/community-outreach>.

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Topic

FALSE CLAIMS ACT

Component

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